

25SMCV04844 25SMCV04844

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Case Number: 25SMCV04844 Hearing Date: August 28, 2026 Dept: P

Tentative

Ruling

Flore

Flora, LLC et al. v. David Separzadeh, et al., Case No. 25SMCV04844

Plaintiffs'

Motions to Compel Further Response to

Hearing

Date: August 28, 2026

Background

Plaintiffs

Flore Flora, LLC; La Brea Kitchen, LLC; and The Mezz La Brea, LLC sue to remove Defendant David Separzadeh from his role as Manager of Flore Flora, LLC and impose a constructive trust over Separzadeh's assets. Plaintiffs allege that Mr. Separzadeh breached his fiduciary duty to Plaintiffs and embezzled money from Plaintiffs, a marijuana lounge and attached restaurant, while he was manager from 2023 to the present, and allege that he was unjustly enriched by his activities. (Complaint, ¶ 36.)

Plaintiffs

initially named David Separzadeh, Hila Seltzer, Newwave Networks, LLC, and Peltbeam, Inc. ("Peltbeam") as Defendants. In October 2025, Plaintiffs named Optimal Investment Group ("Optimal") as Doe Defendant 1.

On

February 2, 2026, Plaintiffs filed four Motions to Compel Discovery.

On

February 13 and February 20, Plaintiffs filed eight Motions to Compel Further Response to Interrogatories, Requests for Production of Documents, and RFAs.

On March

30, 2026, the Court denied Optimal and Peltbeam's Motions for Sanctions.

On April

23, 2026, the Court sustained Optimal and Peltbeam's Demurrer with leave to amend.

The Court

has held at least two Informal Discovery Conferences on Plaintiffs' eight Motions to Compel Further Responses. On July 29, 2026, following the IDCs, Plaintiffs' submitted a supplemental brief clarifying that only three motions remain at issue: Plaintiffs Motions to Compel Further Responses to Requests for Production of Documents from Defendants Separzadeh and Seltzer, and their Motion for Sanctions against Separzadeh under their Motions to Compel Further Responses to Requests for Admission, Special Interrogatories, and Form interrogatories. (Plaintiffs' Supplemental Brief, p. 3.)

Governing

Law- Motion to Compel Further

"A party

may demand that any other party produce . . . a document that is in the possession, custody, or control of the party on whom the demand is made." (Code Civ. Proc., § 2031.010(b).) The demanding party may move for an order compelling further response to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) "The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand," and "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310(b).)

A motion

to compel a further response to an inspection demand must set forth specific facts showing “good cause” justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Unless there is a legitimate privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance. (*TBG Ins. Services Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 444.) Once the moving party demonstrates good cause for the discovery, the burden is on the responding party to justify any objection or failure to fully respond to the inspection demand. (*Coy v Superior Court* (1962) 58 Cal.2d 210, 220.)

Discussion

The only

remaining issues on these Motions is that Separzadeh and Seltzer served their supplemental document production in non-native format that makes it difficult to sequence emails and find the proper attachments, and have failed to identify the proper custodian for the documents. (Plaintiffs’ Supplemental Brief, pp. 4-5.)

Plaintiff

shows good cause for this demand. Code of Civil Procedure section provides, “A party demanding inspection, copying, testing, or sampling of electronically stored information may specify the form or forms in which each type of electronically stored information is to be produced.” (CCP § 2031.030(a)(2).) Additionally, “If a demand for production does not specify a form or forms for producing a type of electronically stored information, the responding party shall produce the information in the form or forms in which it is ordinarily maintained or in a form that is reasonably useable.” (CCP § 2031.280 (d)(1).) Plaintiffs repeatedly requested that Defendants produce the documents at issue in a useable format, which Defendants have not done. (Avrith Decl., ¶ 7.) Defendants’ supplemental production included some documents in native format, but these were distributed within non-native .pdf files and not reasonably useable. (Id. at ¶ 12-13.) Documents in native format often also contain metadata (for example, information about how the files were created), which may be admissible. (See *Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal.App.4th 853, 859, fns. 4 & 5 (Ellis).) The request was reasonably calculated to

lead to the discovery of admissible evidence and was not cumulative or duplicative.

Sanctions

Plaintiffs

request a total of \$14,832.82 in sanctions against Separzadeh, Seltzer, and their attorneys, as well as \$4,875 in sanctions for the cost of sorting documents if Defendants fail to comply with this order. (Plaintiffs' Supplemental Brief, pp. 7-8.)

Plaintiffs

request \$2,873.41 in sanctions on their initial motion to compel further responses to Plaintiffs' request for production of documents from Separzadeh. Plaintiffs' counsel, Mike Dermendjian, requests fees at his hourly rate of \$350 per hour. (Avrith Decl., Exhibit A, ¶ 17.) This is a reasonable hourly rate for an attorney in Los Angeles. He requests fees for six hours drafting the motion, \$73.41 in filing fees, and 2.0 hours preparing a reply. (Ibid.) The Court finds these hours to be reasonable, except for the two hours for the reply because Seltzer did not file opposition to the motion.

Plaintiffs

request \$2,173.41 in sanctions on their initial motion to compel further responses to Plaintiffs' request for production of documents from Seltzer. Plaintiffs' counsel, Mike Dermendjian, requests fees at his hourly rate of \$350 per hour. (Avrith Decl., Exhibit B, ¶ 12.) This is a reasonable hourly rate for an attorney in Los Angeles. He requests fees for six hours drafting the motion, \$73.41 in filing fees, and 2.0 hours preparing a reply. (Ibid.) The Court finds these hours to be reasonable, except for the two hours for the reply because Seltzer did not file opposition to the motion.

Plaintiffs

request \$9,750 in sanctions for work done after the initial motions were filed. (Avrith Decl., ¶ 15.) Plaintiffs' counsel's hourly rate is \$500 per hour. (Ibid.) This is a reasonable hourly rate for an attorney in the Los Angeles Area. Plaintiffs' counsel has spent 15.5 hours attending IDCs, reviewing document production, and meeting and conferring with Defendants' counsel since the initial motions were filed. (Ibid.) Given the number of IDCs and the volume of Defendants' subsequent document production, this is a reasonable amount of

time to spend sorting through discovery, attending IDCs, and meeting and conferring with opposing counsel.

The Court

will not award sanctions for work that may occur if defendants fail to comply with this order on these motions. However, failure to comply with this order could be grounds for a motion to compel compliance or other discovery sanctions.

Conclusion

Plaintiffs'

Motion to Compel Further Production of Separzadeh and Seltzer's Responses to Plaintiffs' requests for production of documents is GRANTED. Separzadeh and Seltzer are ordered to produce the documents in their native formats within ten (10) days of this order, and to identify the custodians for all documents produced.

The Court

awards Plaintiffs \$7,048 ($\$4,875 + (\$2,873.41 - \$700)$) in sanctions against Separzadeh and his attorneys.

The Court

awards Plaintiffs \$6,348 ($\$4,875 + (\$2,173.41 - \$700)$) in sanctions against Seltzer and her attorneys.